

Court No. - 37

Case :- WRIT - C No. - 20567 of 2019

Petitioner :- Ram Sagar Prajapati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kailash Nath Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ram Surat Ram (Maurya),J.

Hon'ble Piyush Agrawal,J.

As prayed put up as fresh before the appropriate Bench on 8th July, 2019. In the meantime Sri Ravi Anand Agrawal, learned standing counsel appearing for the respondent nos. 2 and 3 shall take instructions as to why the electricity connection has not been given to the petitioner although he has completed all the required formalities on 4.9.2017.

Order Date :- 24.6.2019

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Court No. - 29

Case :- WRIT - C No. - 20567 of 2019

Petitioner :- Ram Sagar Prajapati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kailash Nath Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

As prayed by Sri Ravi Anand Agarwal, learned Standing Counsel, put up on **11.07.2019** in the additional cause list to enable him to complete the instructions.

Order Date :- 8.7.2019

Sattyarth

Court No. - 29

Case :- WRIT - C No. - 20567 of 2019

Petitioner :- Ram Sagar Prajapati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kailash Nath Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri learned counsel for the petitioner and Sri Ravi Anand, learned counsel for respondent nos. 2 and 3.

The petitioner applies for an electric connection under the National Agricultural Development Scheme for running a tube-well by the application dated 25.03.2019.

The grievance of the petitioner is that his aforesaid application is not being considered and the electric connection has not been sanctioned so far.

Sri Ravi Anand, learned counsel on the last occasion took time to seek instructions in the matter. He has now received instructions and according to the said instructions, the petitioner for the grant of electricity connection has already deposited a sum of Rs. 99,502/-. He has also supplied with the necessary cable, polls etc. but on account of some dispute of land, the connection could not be granted and installed.

Instructions also mentioned that the son of the petitioner, Vijay has also submitted an affidavit stating that if in the installation of the electric connection any hurdle is created by anyone, the petitioner would be responsible for the same and not the Electricity Department.

There is no dispute to the fact that petitioner is in possession of the land where the tubewell connection is to be installed. Clause 4.4 of the U.P. Electricity Supply Code, 2005 lays down the procedure for the processing of application for the supply of electricity. It appears that the application for new connection shall be accompanied by the document mentioned therein which include proof of ownership of the premises in the form of registered deed or partition deed or succession or heirship certificate or deed of last will or proof of occupancy such as valid power of attorney or latest rent paid receipt or a valid lease deed or indemnity form. The plain reading of the aforesaid provision reveals that the requirement is for the submission of

either of the above documents and, therefore, in case of any difficulty, indemnity form as prescribed alone would be sufficient and it would not be necessary to insist for the other document provided all other conditions or documents mentioned in the subsequent clauses are fulfilled and annexed.

In view of above, in case there appears to be any dispute of the ownership or title of the land, the respondents can ask for the indemnity bond instead of any other proof of ownership or occupancy so as to process the application for the grant of electricity connection.

Accordingly, we dispose of the writ petition with the direction to the Executive Engineer (respondent no. 2) to consider the above application of the petitioner for grant of electricity connection after taking indemnity bond in accordance with law most expeditiously if possible within a period of one month from the date the petitioner furnishes the indemnity bond in the prescribed form.

The writ petition is disposed of.

Order Date :- 11.7.2019

Mohit Kushwaha